

24STCV32788 24STCV32788

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Case Number: 24STCV32788 Hearing Date: September 16, 2026 Dept: 617

Dept.

617

Date:

9-16-26

Case

#: 24STCV32788

Trial

Date: None Set

DEMURRER

MOVING

PARTY: Defendants, Corewell Partners Inc. and M. Aaron Yashouafar

RESPONDING

PARTY: Unopposed/Plaintiff, Aggreko LLC

RELIEF

REQUESTED

Demurrer

to First Amended Complaint

SUMMARY

OF ACTION

Plaintiff

Aggreko LLC sued Defendants Corewell Partners Inc. and M. Aaron Yashouafar after Defendants failed to pay the outstanding amount on a contract for leased equipment. Plaintiff asserts causes of action for: (1) Breach of Contract; (2) Open Book Account; (3) Account Stated; and (4) Quantum Meruit.

RULING: Sustained in part.

Request
for Judicial Notice: Granted.

The
Court takes judicial notice of the existence of the filings with the secretary of state. (Evid. Code, § 452, subd. (c).)

Defendants
demur to Plaintiff's First Amended Complaint arguing that Plaintiff fails to state its claims and the complaint is uncertain. They further demur to Plaintiff's alter ego allegations to the extent the allegations form the basis for any cause of action. Plaintiff does not oppose the demurrer. Because a general demurrer does not lie to a portion of a cause of action, the alter ego allegations are not subject to demurrer. (Daniels v. Select Portfolio Servicing, Inc. (2016) 246 Cal.App.4th 1150, 1167.)
The Court's inquiry is thus focused on Defendants' challenges to the entire complaint and Plaintiff's individual causes of action. The demurrer on grounds of uncertainty is overruled. Defendants' general demurrer to the breach of contract claim is overruled and the demurrer to the remaining claims is sustained. Plaintiff is granted leave to amend with the exception of the account stated claim.

A
demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be

liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc., § 452.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.) “If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.” (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 38.)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of Cal., Inc. (1993) 14 Cal.App.4th 612, 616; Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2 “[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend”].)

The Court first rejects Defendants’ uncertainty arguments. Defendants argue that Plaintiff’s use of “dbas” and its allegations regarding Corewell Partners’ entity form and jurisdiction, which contradict secretary of state filings, fail to provide them fair notice of who Plaintiff contends incurred the debt and on what theory. But the complaint clearly alleges that Plaintiff seeks to hold Defendants liable on a contract they entered into using their alleged fictitious business name “Lennox Equities.” [FAC ¶¶ 2-3.] And while Plaintiff alleges that Corewell Partners is an LLC “duly organized and existing under the laws of the State of California,” even though the statement of information indicates it is a Delaware corporation, this is not a defect that renders the complaint fatally uncertain and can be cured on amendment. [Id. ¶ 2; RJN, Ex. 2.] Defendants’ uncertainty arguments are therefore unavailing, and the Court proceeds to the challenges to the specific causes of action.

First

Cause of Action: Breach of Contract

The

demurrer to the breach of contract cause of action is overruled. Defendants argue this claim fails because the attached contract only identifies Lennox Equities LLC as the contracting entity. [FAC ¶ 9, Ex. A.] But as explained above, Plaintiff alleges that Defendants' fictitious business name is Lennox Equities. The demurrer to the breach of contract claim is therefore overruled.

Second

Cause of Action: Open Book Account

The

demurrer to the open book account claim is sustained. As Defendants argue, "monies which become due under an express contract (such as rent due under a lease) cannot, in the absence of a contrary agreement between the parties, be treated as items under an open book account" (Tsemetzin v. Coast Federal Savings & Loan Assn. (1997) 57 Cal.App.4th 1334, 1343.) Here, Plaintiff attempts to treat the outstanding amount on the contract as an item under an open book account, but it does not allege an agreement between the parties that the sum would be treated as such. Because there is a reasonable possibility that Plaintiff can cure this defect, it is granted leave to amend.

Third

Cause of Action: Account Stated

The

demurrer to the account stated claim is sustained. Defendants correctly argue that "a debt which is predicated upon the breach of the terms of an express contract cannot be the basis of an account stated." (Moore v. Bartholomae Corp. (1945) 69 Cal.App.2d 474, 477.) Here, an account stated claim does not lie because the basis of Plaintiff's claim is the amount owed under the parties' contract. [FAC ¶¶ 16-18.] The demurrer to this claim is therefore sustained without leave to amend.

Fourth

Cause of Action: Quantum Meruit

Defendants'

demurrer to the quantum meruit claim is sustained. As they argue, a plaintiff may not "pursue or recover on a quasi-contract claim if the parties have an

enforceable agreement regarding a particular subject matter.” (Klein v. Chevron U.S.A., Inc. (2012) 202 Cal.App.4th 1342, 1388.) Because quantum meruit may be pled in the alternative, there exists a reasonable possibility that Plaintiff can cure this pleading defect. (Id. at p. 1389.) It is thus granted leave to amend.

Plaintiff

is granted 30 days' leave to amend. Plaintiff may only add facts in support of the successfully challenged claims. (Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023.) If Plaintiff declines or fails to file an amended complaint, Defendants shall answer the operative complaint within 10 days of the lapsed deadline. Any new causes of action outside the scope of the order may be addressed via a motion to strike.

Defendants

to give notice.